

Court No. - 21

Case :- WRIT - C No. - 6928 of 2024

Petitioner :- Prasant Kumar Gupta

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Anil Kumar,Rohit Kumar Singh

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The provisional assessment dated 10.04.2023 was issued to the petitioner on 11.04.2023. The date on which the petitioner was required to appear was left blank. The final assessment was done on 15.04.2023 before expiry of 15 days as provided under 8.1(b) (iii) of Uttar Pradesh Electricity Supply Code, 2005.

2. This is despite specific provision of law and repeated directions issued by this Court to follow the procedure prescribed under the Code.

3. We have been informed that Writ C No. 3458 of 2024 (Devpati Devi vs. State Of UP And 2 Others) has been filed before this Court, in which also procedure for making assessment was not followed. It is listed on 06.03.2024 and therein an affidavit from the Managing Director of Purvanchal Vidyut Vitran Nigam Limited has been called for.

4. Connect with Writ C No. 3458 of 2024 and put up as fresh day after tomorrow i.e. 06.03.2024.

6. Shri Chetan Chatterjee, learned counsel for Electricity Department will inform the Managing Director about the instant case also, so that he may be in a position to respond to the concern of the Court noted above.

Order Date :- 4.3.2024

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(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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1. The petitioner has challenged the recovery proceedings initiated against him for recovery of electricity dues in a case of theft of electricity. The final assessment order dated 15.04.2023 is also under challenge.

2. Sri Chetan Chatterjee, learned counsel for the respondent-Electricity Department, states that the impugned recovery has been withdrawn as there was procedural irregularity and that fresh order will be passed after following the procedure prescribed under the U.P. Electricity Supply Code, 2005.

3. Accordingly, the petition is **disposed of** in terms of the statement of learned counsel for the respondent-Electricity Department.

Order Date :- 1.4.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)